

प्रश्नों
की
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Day 10

Q1) The Supreme Court's ruling on sub-categorization of SCs & STs ensures fair distribution of reservation benefits but raises concerns over fragmentation within these communities. Critically examine its constitutional, social and political implications. (8 Marks)

Ans) In a landmark verdict, the SC has empowered states to make sub-categorization of SCs & STs to uplift the more underprivileged castes. It has both positive and negative consequences of fair distribution of benefits and internal fragmentation respectively.

Constitutional implications

- ↳ SC interpreted Article 14 which allows the sub-classification to achieve substantive equality.
- ↳ It might dilute Article 341 by allowing states to sub-categorize by negating the Scheduled class as a single, unified group.
- ↳ However, in this ruling SC held that Article 341 only identifies Scheduled Caste and does not create a homogeneous group.

Social implications

- ↳ More equitable distribution of reservation benefits to the most disadvantaged sub-castes.
- ↳ Enhancing social mobility and promoting inclusive growth within SC/ST categories.
- ↳ Concern of further fragmentation within the group.
- ↳ Lack of robust empirical data might compromise the targeted implementation.

Political implications

- ↳ It could weaken the collective political representation of SCs and STs.
- ↳ It might allow political tinkering by parties in power in states to expand vote banks.
- ↳ In spite of these negative arguments, it would also ensure a diverse and efficient governance.

Thus, it is necessary that policymakers engage in comprehensive dialogue with all stakeholders to find a balanced solution that addresses disparities while preserving the unity and collective progress of the community as a whole.

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Q2) Should a caste-based Census be mandatory to ensure reservation policies are evidence-based and equitable? Critically analyze its necessity and role in policy formulation. (8 Marks)

Ans) Caste plays a dominating role in all aspects of all our life, be it social, economic or political. On one hand Caste-Census is considered effective in governance, while on the other it might lead to discrimination and violence. Above all, it also helps in reviewing & sensitive policies such as reservation.

Caste-Census necessary for evidence-based and equitable reservation policies

- ↳ It helps in identifying the disadvantaged groups for targeted implementation of policies.
- ↳ Without accurate data, it would be difficult to ensure equitable distribution of resources.
- ↳ It helps in monitoring the impact and implementation of reservation policies.
- ↳ It sheds light on the social fabric and inter-play between different caste groups.
- ↳ It provides a comprehensive picture of the diversity of Indian society.

Why Caste-Census not mandatory for effective and robust reservation policies

- ↳ It could exacerbate caste-based political mobilization.
- ↳ Politicians might use it to cater to specific caste groups for vote bank politics.
- ↳ It is feared that it would trigger demands for greater reservation in public sector jobs, educational institutions or electoral constituencies.
- ↳ Alternative approaches are available to ensure robust reservation policies like Socio-economic Criteria, targeted interventions, regular monitoring and modifications etc.

Role in policy formulation

- ↳ Helps in designing tailored welfare schemes.
- ↳ Helps in delimitation of constituencies.
- ↳ Critics also argue that it could lead to caste consciousness and potential social conflict.

Thus, it is crucial for policymakers to consider both the positives and negatives to provide for a more equitable and just society. A caste census may not fit well with the goal of a casteless society, but it may serve as a means of addressing inequities in society.

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Q4) Extending reservation to the private sector is being considered to ensure social justice, but it raises concerns about economic growth and meritocracy. Critically evaluate the feasibility of implementing reservations in private-sector employment in India. (7 Marks)

Ans) Extending reservation to the private sector is mainly to address local unemployment but it also raises questions about its feasibility in the long run. At first it looks and sounds lucrative but its utility needs to be assessed at the end of the day.

Arguments in support of reservation in private sector

- ↳ Given the high unemployment rate in states like Haryana, it would be an opportunity to protect the right to livelihood of people domiciled in state.
- ↳ It would fulfill the constitutional mandate under Article 16(4) of the Constitution.
- ↳ Addressing the resentment of locals against migrant workers taking up their jobs.
- ↳ As private sectors thrive upon the public infrastructure, it would be legitimate to allow reservation to some extent in private sector too.

- ↳ It would lower the influx of migrants seeking low paid jobs.
- ↳ With a push to privatisation by the Central govt., it would prove to be a boon for the local residents.
- ↳ Inherent biases against marginalized groups would be controlled.

Arguments against reservation in private sector

- ↳ It would decrease the inter-state mobility of workers, thus creating a virtual shortage of workers.
- ↳ Competitiveness of companies would be compromised, thus discouraging investment potential.
- ↳ Inclusive growth would be hindered as workers from under-developed states get no or reduced job opportunity.
- ↳ It might fuel friction among the locals and non-locals, thus negatively impacting the social fabric.
- ↳ Skilled workers may leave with stringent local hiring quotas, leading to a brain drain.

By focusing on skill development & inclusive growth, policymakers can ensure a positive and sustainable approach to private sector reservation that eventually benefits both individuals & the broader economy.